

## FILING INSTRUCTIONS FOR MONDAY, FEBRUARY 3, 2026 EMERGENCY MOTION - WAYNE COUNTY FORECLOSURE SURPLUS PROCEEDS

### OVERVIEW

You have three main documents to file: 1. Emergency Motion for Immediate Relief 2. Motion for Extension of Time 3. Form CC 541 - Motion to Claim Remaining Proceeds (you'll complete this Monday)

Plus supporting documents: - Affidavit of Dieasha D. Davis - Exhibits (acknowledgment letter, eviction notice, etc.)

### WHAT TO DO THIS WEEKEND (SATURDAY/SUNDAY)

1. READ all documents carefully 2. PRINT all documents (3 copies of each) 3. SIGN where indicated 4. GET affidavit NOTARIZED (find a notary Sunday if possible, or Monday morning) 5. GATHER all exhibits: - Exhibit A: May 16, 2025 acknowledgment letter from Wayne County - Exhibit B: February 1, 2026 eviction notice from landlord - Exhibit C: Any documents from 2010 property purchase - Exhibit D: Any documents from 2019 foreclosure - Exhibit E: Evidence of exhausted options (emails, denial letters, etc.) 6. ORGANIZE everything in a folder 7. PRACTICE what you'll say at courthouse

### MONDAY MORNING SCHEDULE

8:00 AM - CALL WAYNE COUNTY TREASURER Phone: (313) 224-5990 Address: 400 Monroe Street, 5th Floor, Detroit, MI 48226

### SAY EXACTLY THIS:

"Good morning. This is Dieasha Davis, Reference Number 831721WD08GCR, Parcel 02004687 - 19344 Strathcona Drive.

I am filing an emergency motion today in Third Circuit Court regarding my surplus proceeds claim. I need the following information immediately:

1. What is the Third Circuit Court CASE NUMBER from the 2019 foreclosure judgment? 2. Which JUDGE was assigned to that case? 3. What DATE was the judgment of foreclosure entered? 4. What DATE was the property sold at auction? 5. What was the AUCTION SALE PRICE? 6. Did my mortgage company file a claim by March 31, 2025? 7. If yes, WHO was the mortgage company and what was their claimed BALANCE? 8. What was Wayne County's total claimed AMOUNT? 9. Are there any OTHER claimants?

This is an emergency filing. I need this information right now."

WRITE DOWN EVERYTHING THEY TELL YOU.

9:00 AM - COMPLETE FORM CC 541

Using the information from Wayne County, fill in the blanks on Form CC 541:

- Case No.: [from County] - Judge: [from County] - Court address: 2 Woodward Avenue, Detroit, MI 48226 - Court telephone: (313) 224-5261 - Plaintiff: Wayne County Treasurer, 400 Monroe Street, 5th Floor, Detroit, MI 48226 - Defendant: Your name and current address - Line 1: Check "all" for seeking all remaining proceeds - Line 2: [Date of foreclosure judgment from County] - Line 3: [Date of sale from County] - Line 4: Parcel ID 02004687, Address 19344 Strathcona Drive, Detroit MI 48203 - Line 5: Check the box, write "Fee simple ownership - I owned and occupied as primary residence" - Line 6: Check 6a, write "Mortgage held by [name from County]" - Line 7: Check "is included" - Line 8: Write what's in your affidavit paragraphs 89-101 - Line 9: Check "did not" for both - Line 10: Check "did not" - Line 11: Check "do not" - Sign and date - Sign certificate of mailing

PRINT 3 COPIES of completed Form CC 541

10:00 AM - GO TO WAYNE COUNTY THIRD CIRCUIT COURT

Address: 2 Woodward Avenue, Detroit, MI 48226 Phone: (313) 224-5261

BRING: - 3 copies of Emergency Motion - 3 copies of Motion for Extension of Time - 3 copies of completed Form CC 541 - 3 copies of your Affidavit (notarized) - 3 copies of all exhibits - Original acknowledgment letter - Original eviction notice - Filing fee (ask clerk how much - may be waived given emergency) - Photo ID

AT THE COURTHOUSE - STEP BY STEP

STEP 1: GO TO CLERK'S OFFICE (1st Floor)

Ask for: "Clerk's office for Third Circuit Court civil cases"

When you get to clerk's office, say:

"I need to file an emergency motion in an existing foreclosure case. Case Number [from County]. This is an emergency residential eviction matter and I'm requesting a hearing within 48 to 72 hours."

STEP 2: FILE YOUR DOCUMENTS

Hand clerk: - 3 copies of Emergency Motion for Immediate Relief - 3 copies of Motion for Extension of Time - 3 copies of Form CC 541 - 3 copies of Affidavit - 3 copies of exhibits

Clerk will: - File-stamp all copies - Return 2 copies to you (1 for County, 1 for your records) - Tell you filing fee (may waive for emergency/indigent) - Give you instructions for next steps

### STEP 3: REQUEST EMERGENCY HEARING

Say to clerk:

"This is an emergency motion. I received eviction notice on February 1st and I'm requesting an emergency hearing within 48 to 72 hours. How do I get this scheduled?"

Clerk will either: - Direct you to assignment clerk - Direct you to judge's courtroom - Take it to give to judge - Tell you to call back for hearing date

FOLLOW THEIR INSTRUCTIONS.

### STEP 4: ASK ABOUT EMERGENCY PROCEDURES

Ask clerk:

"Does this court have special procedures for emergency residential eviction matters? Do I need to file anything else? Will the judge review this today?"

GET CLEAR INSTRUCTIONS ABOUT NEXT STEPS.

### STEP 5: GET COPIES FILE-STAMPED

Make sure all your copies are FILE-STAMPED with date and case number.

You need: - 1 copy for Wayne County Treasurer (to serve on them) - 1 copy for your records

12:00 PM - SERVE WAYNE COUNTY TREASURER

After filing, you must serve Wayne County with copies.

THREE WAYS TO SERVE:

Method 1: HAND DELIVERY (Best) - Go directly to: Wayne County Treasurer, 400 Monroe Street, 5th Floor, Detroit, MI 48226 - Hand copies to receptionist - Say: "I am

serving these court filings in Case No. [number]. Please accept service." - Get them to sign and date your extra copy acknowledging receipt

Method 2: EMAIL (Backup) - Email to: WCTclaims@waynecounty.com - Subject: "Court Filings - Case No. [number] - Emergency Motion - Dieasha Davis" - Attach PDFs of all documents - In email say: "Please find attached emergency motion filings from Case No. [number]. I am also serving by mail/hand delivery."

Method 3: CERTIFIED MAIL (Do this too) - Mail copies certified mail, return receipt requested - To: Wayne County Treasurer, ATTN: Foreclosure Claims, 400 Monroe Street, 5th Floor, Detroit, MI 48226

#### AFTER FILING - FOLLOW UP

SAME DAY (Monday afternoon): - Call court clerk to confirm they received your emergency motion - Ask when judge will review it - Ask how you'll be notified of hearing date - Confirm your phone number is on all documents

TUESDAY: - Call clerk again if you haven't heard about hearing date - Call Wayne County to confirm they received your filings - Be ready to appear in court on short notice

WEDNESDAY: - If still no hearing date, go back to courthouse in person - Ask to speak with judge's clerk - Emphasize emergency nature

#### WHAT TO EXPECT

BEST CASE: - Judge reviews emergency motion same day or next day - Emergency hearing scheduled within 48-72 hours - Judge grants stay of eviction at hearing - Judge orders preliminary payment within 14 days - You get money, pay landlord, crisis averted

LIKELY CASE: - Judge reviews within 2-3 days - Hearing scheduled within 1 week - Judge grants stay of eviction immediately - Judge orders expedited final hearing - Preliminary payment ordered within 2-4 weeks

MINIMUM CASE: - Hearing within 2 weeks - Judge expresses concern about County's violations - Judge grants extension of time - Expedited proceedings ordered - Resolution in 4-8 weeks

#### PREPARING FOR YOUR HEARING

#### WHEN YOU GET HEARING DATE:

1. REVIEW all your documents 2. PRACTICE your testimony 3. ORGANIZE your exhibits 4. DRESS professionally (business attire) 5. ARRIVE 30 minutes early 6. BRING all original documents 7. BRING copies of everything 8. BE READY to answer judge's questions

#### WHAT TO SAY AT HEARING (5-MINUTE SUMMARY):

"Your Honor, thank you for hearing this emergency matter.

In 2010, I bought my first home. For nine years, I made my mortgage payments - 108 consecutive payments totaling \$237,600, plus a \$20,000 down payment. I invested \$257,600 in that home.

In 2019, Wayne County foreclosed for back taxes. I lost my home and received nothing. Wayne County kept all proceeds.

In February 2025, after the Supreme Court's Rafaeli decision, I filed my claim for surplus proceeds - nearly 2 months early. County acknowledged my claim in May 2025 and promised to send me information by July 2025 so I could file with this Court.

County never sent that information. I couldn't file by the October deadline because I didn't have the case number or other information County was required by law to provide.

Now, on February 1st, I received an eviction notice from my rental home. I owe \$7,200 in back rent. I face homelessness while Wayne County holds proceeds from my 9-year investment.

I've exhausted every option. I've sold my car. I've sought help from family, friends, assistance programs. There's nowhere else to turn except to this Court and the equity I built over nine years.

Your Honor, I'm not asking for charity. I'm asking for what's mine - the surplus proceeds from my property. County has held those proceeds for 7 years. I need a preliminary payment of \$10,700 to prevent eviction while my claim is adjudicated.

I should not lose a second home while County holds my equity from my first home. I respectfully ask this Court to exercise its equitable authority to prevent this injustice."

#### QUESTIONS JUDGE MAY ASK:

Q: "How much do you think you're entitled to in surplus proceeds?" A: "Based on the property's resale for \$283,400, I believe \$60,000 to \$225,000 depending on the auction price and whether my mortgage company filed a claim."

Q: "Why didn't you file by October 1st?" A: "Wayne County never sent the motion notice they were required by law to send by July 1st. Without the case number, I couldn't file."

Q: "What happens if I grant preliminary payment and you're not entitled to it?" A: "County can recover it in the final allocation order. But if you don't grant relief and I'm evicted, that harm can never be undone."

Q: "Have you tried to work with your landlord?" A: "Yes, Your Honor. I've tried to negotiate for more time, but landlord requires payment. I've exhausted every other option including selling my car."

Q: "When can you pay the full amount?" A: "As soon as County provides the required information and this Court allocates the surplus proceeds. That's what I'm asking the Court to expedite."

#### IMPORTANT REMINDERS

1. BE RESPECTFUL: Call judge "Your Honor" 2. BE HONEST: Only state facts you know are true 3. BE CONCISE: Answer questions directly, don't ramble 4. BE PREPARED: Have all documents organized 5. BE EMOTIONAL: It's okay to show how this affects you - this is your life 6. BE CLEAR: You're asking for: - Stay of eviction - Preliminary payment of \$10,700 - Expedited final hearing - Order requiring County to provide information

#### CONTACTS FOR HELP

Wayne County Treasurer: (313) 224-5990 Wayne County Third Circuit Court: (313) 224-5261 Legal Aid Detroit: (313) 964-4130 State Bar Lawyer Referral: (800) 968-1442

#### FINAL CHECKLIST FOR MONDAY

BEFORE 8 AM: ■ All documents printed (3 copies each) ■ All documents signed ■ Affidavit notarized ■ All exhibits copied and organized ■ Folder/binder prepared ■ Dressed professionally ■ Phone charged ■ Transportation arranged

8:00 AM: ■ Called Wayne County Treasurer ■ Got case number ■ Got all required information ■ Wrote everything down

9:00 AM: ■ Completed Form CC 541 ■ Made 3 copies ■ Double-checked all information

10:00 AM - 12:00 PM: ■ Went to courthouse ■ Filed all documents ■ Got file-stamped copies ■ Requested emergency hearing ■ Got instructions from clerk

12:00 PM - 2:00 PM: ■ Served Wayne County (hand delivery) ■ Emailed County ■ Mailed certified copies

AFTERNOON: ■ Called clerk to confirm receipt ■ Confirmed hearing will be scheduled ■ Confirmed how I'll be notified

YOU'VE GOT THIS

You've prepared thoroughly. Your documents are strong. Your case is compelling. You filed your claim timely, County violated the law, and you're facing genuine emergency.

Judges respond to: - People who prepared properly (✓ you did) - People who tried everything else first (✓ you did) - Genuine emergencies (✓ eviction notice Feb 1) - Sympathetic facts (✓ 9 years homeownership, \$257,600 invested) - Legal merit (✓ you have strong legal arguments)

Walk in confident. You belong there. This is your day to get justice.

Good luck Monday. You're going to do great.